CCRB INVESTIGATIVE RECOMMENDATION

Investigator:	Team:	CCRB Case #:	☑ Force ☑ Discourt. ☐ U.S.
Emilce Quiroz	Squad #03	202501869	☑ Abuse ☐ O.L. ☐ Injury

Incident Date(s)	Location of Incident:	18 Mo. SOL	Precinct:
Tuesday, 02/25/2025 12:55 AM	Brooklyn Bridge subway station	8/25/2026	

Date/Time CV Reported	CV Reported At:	How CV Reported:	Date/Time Received at CCRB
Tue, 02/25/2025 1:23 PM	CCRB	Phone	Tue, 02/25/2025 1:23 PM

Complainant/Victim	Type	Home Address
[redacted]	[redacted]	[redacted]
[redacted]	[redacted]	[redacted]
[redacted]	[redacted]	[redacted]

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. PO Tyler Stradford	03402	980215	046 PCT
3. PO Pamela Sosa	13350	980207	046 PCT
4. SGT Amandeep Kaur	03847	967565	TD 4

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Gaulie Avelino	00473	979705	041 PCT
2. PO Cristian Hernandez	06170	960661	TD 4
3. PO Awdallah Abdelhay	04979	979667	042 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Tyler Stradford	Force: Police Officer Tyler Stradford used physical force against § 87(2)(b)	A . Within NYPD Guidelines
B . PO Pamela Sosa	Force: Police Officer Pamela Sosa used physical force against § 87(2)(b)	B . Within NYPD Guidelines
C . SGT Amandeep Kaur	Force: Sergeant Amandeep Kaur used physical force against § 87(2)(b)	C . Within NYPD Guidelines
D . Officers	Force: Officers used physical force against § 87(2)(b)	D . Within NYPD Guidelines
E . SGT Amandeep Kaur	Discourtesy: Sergeant Amandeep Kaur spoke discourteously to § 87(2)(b)	E . Unfounded
F . SGT Amandeep Kaur	Abuse: Sergeant Amandeep Kaur threatened § 87(2)(b) with the use of force.	F . Unfounded

Case Summary

On February 25, 2025, § 87(2)(b) a reporting non-witness, filed the following complaint over the phone with the CCRB on behalf of his son, § 87(2)(b) and his son's friend, § 87(2)(b)

On February 25, 2025, at approximately 12:55 a.m. in the vicinity of the Brooklyn Bridge Subway station in Manhattan, § 87(2)(b) and § 87(2)(b) were sitting in a north-bound 4 train when Police Officer Tyler Stradford and Police Officer Pamela Sosa, of the 46th Precinct, Police Officer Awdallah Abdelhay, of the 42nd Precinct, and Police Officer Cristian Hernandez, of Transit District 4, boarded the train. PO Stradford asked § 87(2)(b) to put his feet on the floor. § 87(2)(b) was sitting with one of his legs up, occupying the seat next to him. § 87(2)(b) put his foot down but kept his upper thigh on the seat next to him. PO Stradford again asked § 87(2)(b) to put his leg down, but he did not comply. PO Stradford then ordered § 87(2)(b) off the train, but § 87(2)(b) objected, stating that it was late and he had work in the morning. PO Stradford and PO Sosa grabbed § 87(2)(b) pulled him off the train, and onto the platform **(Allegations A and B: Force, Within NYPD Guidelines)**.

§ 87(2)(b) followed § 87(2)(b) and the officers onto the platform. The officers asked § 87(2)(b) for his identification and began to issue him a summons. A few moments later, approximately ten uniformed police officers, including Sergeant Amandeep Kaur of Transit District 4, appeared. Sgt. Kaur ran up to § 87(2)(b) pushed him from the side, and told him to back up **(Allegation C: Force, Within NYPD Guidelines)**. § 87(2)(b) resisted her push and refused to back up. Sgt. Kaur pushed § 87(2)(b) two more times on the left side of his body. § 87(2)(b) lifted his elbow up and away from Sgt. Kaur's grip, at which point Sgt. Kaur grabbed a hold of his jacket collar, and she and the surrounding officers descended upon him, tossing him to the floor and pinning him down with their legs to handcuff him **(Allegation D: Force, Within NYPD Guidelines)**. Sgt. Kaur allegedly told the surrounding officers to "fuck him up" **(Allegation E: Discourtesy, Unfounded and Allegation F: Abuse of Authority, Unfounded)**. § 87(2)(b) was issued a summons for occupying more than one seat on the subway **(BR01)** and § 87(2)(b) was arrested and charged with obstructing governmental administration (OGA), menacing, and disorderly conduct **(BR02).**

The investigation obtained (6) cell phone video recordings from the § 87(2)(b) and § 87(2)(b) **(BR03-BR08)** and (18) Body-Worn Camera ("BWC") videos from the NYPD **(BR09-BR26)**.

Findings and Recommendations

Allegation (A) Force: Police Officer Tyler Stradford used physical force against § 87(2)(b)

Allegation (B) Force: Police Officer Pamela Sosa used physical force against § 87(2)(b)

stated **(BR27)** that he and § 87(2)(b) were riding the north-bound 4 train when the train stopped at the Brooklyn Bridge-City Hall station in Manhattan. Four officers, including PO Stradford and PO Sosa, boarded the train and PO Stradford asked § 87(2)(b) to put his legs down. § 87(2)(b) complied but kept his right thigh spread across the seat next to him. PO Stradford asked him to put his leg down, but he refused to comply. After some back and forth, PO Stradford and PO Sosa allegedly grabbed § 87(2)(b) and dragged him off the train and onto the platform.

At 1:55 in PO Stradford's BWC **(BR17)**, PO Stradford enters the last train car on the 4 train and turns to his right where § 87(2)(b) and § 87(2)(b) are seated. § 87(2)(b) has one foot up on the seat next to him. PO Stradford asks him to put his foot down. § 87(2)(b) puts his foot down but keeps his right thigh spread out over the seat next to him. PO Stradford again asks § 87(2)(b) to put his leg down, but he just stares back at him.

At 2:00, PO Stradford tells § 87(2)(b) to step off the train. § 87(2)(b) looks at PO Stradford and PO Sosa but does not get up. § 87(2)(b) who is seated across from § 87(2)(b) starts to object and says, "No, no. Get the fuck off the train and let a nigga ride. Get out of here bro." At 2:30, PO Stradford steps closer to § 87(2)(b) and repeatedly asks him to step off the train. § 87(2)(b) says, "For what?" PO Stradford says, "I asked you to do something, and you kept your foot on the bench." § 87(2)(b) says, "I did it though." At 2:50, PO Stradford and PO Sosa grab § 87(2)(b) by the arms, pull him up to his feet, and guide him off the train.

The relevant cell phone video submitted by the civilians similarly shows § 87(2)(b) thigh occupying the seat. The officers pull him off the seat and remove him from the train (**BR 3**).

No officers were interviewed for this case as their statements would not have affected the disposition of the allegations.

According to the NYCTA Rules of Conduct and Fines § 1050, "[n]o person on or in any facility or conveyance shall**: (j)** (1) occupy more than one seat on a station, platform or conveyance when to do so would interfere or tend to interfere with the operation of the transit system or the comfort of other passengers; (2) place their foot on a seat on a station, platform or conveyance[.]" **(BR30)**

NYPD Patrol Guide, Procedure 221-01 provides that "[f]orce may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances." It also provides that "In determining whether the use of force is reasonable, members of the service should consider the following: [t]he nature and severity of the crime/circumstances, [a]ctions taken by the subject, [d]uration of the action, [i]mmediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, [w]hether the subject is actively resisting custody, [w]hether the subject is attempting to evade arrest by flight, [n]umber of subjects in comparison to the number of MOS Size, age, and condition of the subject in comparison to the MOS, [s]ubject's violent history, if known, [p]resence of hostile crowd or agitators, [s]ubject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence." **(BR29)**

As evidenced by the BWC footage and the cell phone video footage provided by § 87(2)(b) and § 87(2)(b) did have his leg up on the seat next to him, § Although § 87(2)(b) complied with PO Stradford's orders at first, he continued to partially block the seat next to him. PO Stradford repeatedly asked § 87(2)(b) to put his leg down but he refused to comply any further.

After refusing to comply with PO Stradford's orders, § 87(2)(b) was ordered to step off the train and onto the platform. § 87(2)(b) repeatedly refused PO Stradford's orders,

prolonging the interaction between himself and the officers and forcing the officers to hold the train and disrupt service. After about a minute of back and forth, PO Stradford and PO Sosa grabbed § 87(2)(b) by the arms, lifted him up to his feet, and guided him off the train and onto the platform § 87(2)(g) is therefore recommended that **Allegations A and B** be closed as **Within NYPD Guidelines.**

Allegation (C) Force: Sergeant Amandeep Kaur used physical force against § 87(2)(b)
Allegation (D) Force: Officers used physical force against § 87(2)(b)
Allegation (E) Discourtesy: Sergeant Amandeep Kaur spoke discourteously to § 87(2)(b)
Allegation (F) Abuse of Authority: Sergeant Amandeep Kaur threatened § 87(2)(b) **with the use of force.**

§ 87(2)(b) stated **(BR28)** that after PO Stradford and PO Sosa pulled § 87(2)(b) off the train, Sgt. Kaur ran up to him, pushed him from the side, and told him to back up. § 87(2)(b) refused to back up and Sgt. Kaur pushed him two more times on the left side of his body until his back was to the wall. Sgt. Kaur grabbed § 87(2)(b) and allegedly told the other officers to "fuck him up." Sgt. Kaur, PO Stradford, and other officers grabbed § 87(2)(b) and threw his phone on the floor. PO Stradford and the other arresting officers placed their knees on § 87(2)(b) legs and lower back, pinning him to the ground, injuring § 87(2)(b) back as a result.

At 3:09 in PO Stradford's BWC **(BR17)**, PO Stradford asks § 87(2)(b) for identification. § 87(2)(b) walks up to them and stands to the right of PO Stradford. PO Stradford puts his hand up to § 87(2)(b) chest and says, "Yo, can you back up?" § 87(2)(b) says, "No, I'm good right here." PO Abdelhay grabs § 87(2)(b) by the right arm and pulls him away from PO Stradford and § 87(2)(b) pushes PO Abdelhay's arm away and says, "Get your hands off of me." At 3:24, § 87(2)(b) turns to face PO Abdelhay, standing approximately two to three inches away from his face and says, "Don't you ever put your hands on me, you bum-ass nigga." PO Stradford asks § 87(2)(b) if he can back up but § 87(2)(b) turns around and says, "Shut the fuck up." At 4:53 in PO Stradford's BWC footage, Sgt. Kaur approaches § 87(2)(b) and places her hands on his arms, pushing him gently to the left of the screen and away from § 87(2)(b) pulls his arms away from her saying, "Get your hands off of me!"

At 1:00 in Sgt. Kaur's BWC **(BR25)**, Sgt. Kaur approaches § 87(2)(b) and says, "Can you do me a favor and just step back?" § 87(2)(b) says, "I'm good right here." She repeatedly asks him to step back, and he repeatedly refuses. At 1:04, Sgt. Kaur places her hand on § 87(2)(b) left side and gently pushes him to the right. § 87(2)(b) pulls away from her saying, "Get your hands off of me!" At 1:06, Sgt. Kaur grips § 87(2)(b) by the forearms and says, "Like I said, move back!" § 87(2)(b) pulls his arms out of her grip and says, "Get your hands off of me lady!" At 1:16, Sgt. Kaur pushes § 87(2)(b) away, forcing him to take a step towards the left of the screen. She says, "Stand there. That's where you stand." At 1:40, Sgt. Kaur says, "Maintain your distance." § 87(2)(b) turns towards her, standing close to her face and says, "You came in my face! You came in my face!" They go back and forth for several seconds. At 1:55, Sgt. Kaur places her hands on § 87(2)(b) arms to push him away and he thrusts his left elbow up. She grabs him by the arm and yells out, "Yo, cuff him up! Cuff him up! He's gonna' push me? Cuff him up!" A struggle ensues. Sgt. Kaur grabs a hold of § 87(2)(b) jacket collar and left shoulder and restrains him while the other officers try to place him in handcuffs. At 2:32, Sgt. Kaur says, "Put him on the floor, put him on the floor."

At 2:25 in PO Emely Bustamante's BWC **(BR13)**, § 87(2)(b) feet go up in the air as the officers take him down to the ground. PO Bustamante grabs a hold of § 87(2)(b) feet and places a

knee on his legs to pin him down. § 87(2)(b) struggles to get up off the ground as the officers hold him down and try to place handcuffs on him.

At 3:12 in Sgt. Kaur's BWC **(BR25)**, § 87(2)(b) is face-down on the ground as Sgt. Kaur and other officers try to handcuff him. She tells an officer, "Don't put two cuffs, just put one cuff." § 87(2)(b) shouts, "What the fuck are y'all doing putting two cuffs on me? Y'all niggas don't know what you're doing." At 3:23, § 87(2)(b) says, "Get your legs off of me." Sgt. Kaur responds, "Nobody's putting their knee on you." § 87(2)(b) replies, "Yeah you are." At 3:35, they're finally able to place handcuffs on him and they pull him up to his feet.

Arrest Report § 87(2)(b) **(BR02)** entered by PO Sosa described the following narrative/reason for § 87(2)(b) arrest: "[PO Sosa] observed defendants friend occupying more than one seat on the n/b 4 train violating NYCTR. § 87(2)(b) started arguing with the officers saying that they [we]re not getting off the train. While § 87(2)(b) was detained, defendant started cursing at the officers and refused to maintain [a] safe distance between himself and the officers. Defendant did push multiple officer's hands and elbowed one of the officers. Defendant started [flailing] his arms, tensing his body, [and] kicking his legs, preventing the officers from taking him into custody."

PO Sosa's Activity Log Report **(BR31)** notes that § 87(2)(b) was arrested at the Brooklyn Bridge Subway station at 12:55 a.m. on February 25, 2025, for OGA, disorderly conduct, and menacing in the third degree.

NY Penal Law § 195.05 provides that "[a] person is guilty of obstructing governmental administration when: [s]uch person intentionally obstructs, impairs or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force or interference, or by means of any independently unlawful act [..] Obstructing governmental administration is a class A misdemeanor." **(BR33)**

NY Penal Law § 240.20 provides that "[a] person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof: He engages in fighting or in violent, tumultuous or threatening behavior; or [h]e makes unreasonable noise; or [i]n a public place, he uses abusive or obscene language, or makes an obscene gesture; or [w]ithout lawful authority, he disturbs any lawful assembly or meeting of persons; or [h]e obstructs vehicular or pedestrian traffic; or [h]e congregates with other persons in a public place and refuses to comply with a lawful order of the police to disperse; or [h]e creates a hazardous or physically offensive condition by any act which serves no legitimate purpose." **(BR34)**

NYPD Patrol Guide, Procedure 221-01 provides that "[f]orce may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances. […] In determining whether the use of force is reasonable, members of the service should consider the following: [t]he nature and severity of the crime/circumstances, [a]ctions taken by the subject, [d]uration of the action, [i]mmediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, [w]hether the subject is actively resisting custody, [w]hether the subject is attempting to evade arrest by flight, [n]umber of subjects in comparison to the number of MOS, [s]ize, age, and condition of the subject in comparison to the MOS, [s]ubject's violent history, if

known, [p]resence of hostile crowd or agitators, [s]ubject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence." **(BR29)**

No officers were interviewed in this case as their statements would not have affected the disposition of the allegations.

As evidenced by the BWC footage provided by NYPD, Sgt. Kaur and officers on scene did use force against § 87(2)(b) § 87(2)(g) [redacted]

When Sgt. Kaur arrived on scene, she approached § 87(2)(b) and asked him to step aside, placing her hands on him to move him away from the officers, but § 87(2)(b) resisted, pulling his arms away from her and refusing to comply with her orders. § 87(2)(g) [redacted]

Once the decision was made to place § 87(2)(b) under arrest, he actively resisted by flailing his arms, tensing his body, and pulling his arms away from the arresting officers. Sgt. Kaur ordered the arresting officers to perform a forceful takedown of § 87(2)(b) It took several officers to hold § 87(2)(b) down and keep him still long enough for the officers to place him in handcuffs. § 87(2)(g) [redacted] It is therefore recommended that **Allegations C-D** be closed as **Within NYPD Guidelines**.

§ 87(2)(g) review of the BWC footage and the cellphone footage provided by § 87(2)(b) and § 87(2)(b) Sgt. Kaur did not tell the other officers to "fuck him up" but instead said, "Cuff him up," § 87(2)(g) [redacted] It is therefore recommended that **Allegations E-F** be closed as **Unfounded.**

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party **(BR35).**
- This is the first CCRB complaint to which § 87(2)(b) has been a party **(BR36).**
- This is the first CCRB complaint to which § 87(2)(b) has been a party **(BR37).**
- PO Stradford has been a member of service for less than one year and this is the first CCRB complaint to which he has been a subject **(BR37).**
- PO Sosa has been a member of service for less than one year and this is the first CCRB complaint to which she has been a subject **(BR38).**
- Sgt. Kaur has been a member of service for six years and has been a subject in four prior CCRB complaints and nine allegations, of which one was substantiated:
  - CCRB Case # 202308965 involved substantiated allegations of abuse against Sgt Kaur. The Board recommended formalized training and the NYPD imposed formalized training **(BR39).**

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of May 28, 2025, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident **(BR40).**
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 3

Investigator:	Emilce Quiroz	Inv. Emilce Quiroz	07/09/2025
	Signature	Print Title & Name	Date
Squad Leader:	Rolando Vasquez	IM Rolando Vasquez	8/25/2025